

BEFORE THE COLORADO BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS AND THE COLORADO ADDICTION COUNSELOR PROGRAM

STATE OF COLORADO

CASE NOS.: 2010-001101 & 2010-001380

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING AND THE CERTIFICATE TO PRACTICE
ADDICTION COUNSELING IN THE STATE OF COLORADO OF ROBERT (CHARLIE)
JOHNS, LICENSE NO. LPC 3108 AND CERTIFICATE NO. 1348,

Respondent.

IT IS HEREBY STIPULATED by and between the Colorado Board of Licensed
Professional Counselor Examiners ("Board"), Colorado Addiction Counselor Program
("Director") and Robert (Charlie) Johns ("Respondent") as follows:

1. The Board and Director have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Professional Counselor and certified to practice as an Addiction Counselor III in the State of Colorado at all times relevant herein.
3. Respondent is not currently engaged in the practice of professional counseling or addiction counseling in Colorado.
4. This Order is a full and final resolution of Case Numbers 2010-001101 and 2010-001380. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board, Director or Respondent, as of the effective date of this Order.
5. Respondent admits the following:
 - a. Respondent allowed interns/trainees to conduct intakes and facilitate domestic violence offender treatment groups without being approved Domestic Violence Offender Management Board (DVOMB) providers.
 - b. Respondent failed to provide proper supervision to the interns/trainees in question.

6. By virtue of the facts admitted in paragraph 5 above, the Board and Director find that Respondent violated Sections 12-43-222(1)(g) and (n), C.R.S., and DVOMB Standards 4.02 and 5.03.

7. By virtue of paragraphs 5 and 6, Respondent is subject to the following disciplinary sanction(s) that the Board and Director believe is necessary to protect the public health, safety, and welfare.

8. Respondent is not currently practicing professional counseling or addiction counseling in Colorado. Should Respondent seek to resume the practice of professional counseling and/or addiction counseling, he must first notify the Board and Director in writing of his intent to resume practice in the state.

9. Prior to resuming the practice of professional counseling and/or addiction counseling in Colorado, Respondent shall obtain a Board and Director-approved practice evaluator who will conduct a practice evaluation. Respondent shall nominate three proposed practice evaluators for Board and Director approval consistent with paragraphs 12 and 13. The practice evaluator may also be Respondent's practice monitor should the Board and Director authorize Respondent to resume practice in Colorado. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The findings of the practice evaluation shall be submitted to, and accepted by, the Board and Director. Respondent shall not perform any act requiring a license to practice professional counseling or addiction counseling in Colorado until such time as the Board and Director have accepted the practice evaluation, authorized Respondent to resume practice in Colorado, and approved Respondent's practice monitor.

10. Should the Board and Director determine from the evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall not be allowed to resume the practice of professional counseling and/or addiction counseling or any portion of the practice of professional counseling and/or addiction counseling that the Board and Director determine, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board and Director's findings and the evaluation, the Board and Director will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board and Director find Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board and Director that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

11. Should the Board and Director authorize Respondent to resume practice in Colorado after review of the practice evaluation, Respondent's license to practice professional counseling and certification to practice addiction counseling in the State of Colorado shall be placed on probation for one (1) year commencing from the date that the Board and Director

authorizes Respondent to resume practice. During the probationary period, Respondent shall be bound by the terms and restrictions set forth below.

PROBATIONARY TERMS SHOULD RESPONDENT RESUME PRACTICE

12. During the term of probation, Respondent's practice will be monitored by a practice monitor. Respondent shall submit, in writing, three proposed practice monitors for the Board and Director's approval. Respondent shall include an approved practice monitor application form from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado.
- b. It is recommended that the practice monitor have a minimum of five years experience and has not been subject to professional discipline.
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

13. After the Board and Director's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for a practice monitoring. The practice monitor shall provide a copy of the written contract to the Board and Director as a part of his/her first practice monitoring report to the Board and Director. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

14. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once a month. During the practice monitoring sessions, Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling and/or addiction counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.

15. The practice monitor shall submit written reports to the Board and Director on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the remainder of the probationary period.

16. If at any time the Board or Director has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board or Director meeting necessary to address the Board or Director's concerns. The Board or Director will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board or Director meeting.

17. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board and Director, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling and/or addiction counseling.

18. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board and Director. If, in the Board or Director's judgment, the practice monitor fails to perform the function specified by this Order, the Board or Director may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board and Director within 30 days.

19. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board and Director not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board and Director-approved practice monitor, who shall conduct her/his monitoring and report to the Board and Director in accordance with this Order.

20. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

21. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a professional counselor and/or addiction counselor in Colorado, is being monitored by a practice monitor and is in full compliance with all terms of this Order.

22. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board and Director, and Respondent is responsible for establishing, to the satisfaction of the Board and Director, that he has satisfied all terms and conditions of probation.

CONTINUING EDUCATION

23. During the period of probation, Respondent must successfully complete at least twenty (20) hours of Board and Director-approved professional continuing education courses in the areas of ethics, supervisory responsibilities, and DVOMB standards and rules. Respondent

shall obtain Board and Director approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board and Director a certificate of completion.

TERMS AND CONDITIONS

24. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that s/he practices in accordance with the generally accepted standards of practice.

25. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing any type of psychotherapy and/or addiction counseling during the term of probation.

26. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board or Director.

27. During the pendency of this Order, Respondent agrees that he will provide permission to and allow his practice monitor, therapy evaluator, or therapist to provide records and information obtained in the normal course of practice monitoring, therapy evaluation, or treatment to the Board and Director if the practice monitor, therapy evaluator, or therapist determines that Respondent is not practicing professional counseling and/or addiction counseling in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Respondent explicitly waives his right to maintain confidentiality of records or information provided to the practice monitor, therapy evaluator, or therapist in the normal course of practice monitoring, therapy evaluation, or treatment if the practice monitor, therapy evaluator, or therapist determines that he is not practicing professional counseling and/or addiction counseling in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care.

28. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board and Director of the change of address within 30 days of the effective date of such change.

29. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

30. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

31. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board and Director Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

32. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board and Director Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

33. Respondent shall obey all state and federal laws while this Order is in effect.

34. This Order constitutes the entire agreement between Respondent and the Board and Director. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

35. This Order shall become effective when accepted and signed on behalf of the Board and Director.

36. This Order shall be admissible as evidence at any hearing held before the Board and Director.

37. This Order shall be a public record in the custody of the Board and Director.

AGREED TO AND ACCEPTED BY:

RESPONDENT


ROBERT (CHARLIE) JOHNS
LPC No. 3108
CAC III No. 1348

AGREED TO AND ORDERED BY:

FOR THE COLORADO BOARD OF
LICENSED PROFESSIONAL COUNSELORS
AND THE DIRECTOR OF
THE DIVISION OF REGISTRATIONS


RONNE M. HINES
Program Director

Effective Date: This 4th day of
March, 2011.